

# JUDGES ON TRIAL

The mounting allegations of corruption against judges across the country stress the need for an institutional mechanism to ensure judicial accountability

■ By Shafi Rahman and Ramesh Vinayak

**K**ing Cambyses of Persia, who once after discovering that a judge took a bribe, had him executed, his skin stripped and stretched on the judgement seat. Then he appointed the ex-judge's son as the new judge and warned him to remember the way his seat had been "cushioned".

The skinning has started, albeit on a lesser scale, down here. The Chief Justice of India (CJI), K.G. Balakrishnan, is seeking the dismissal of Calcutta High Court Judge Soumitra Sen for corrupt practices, spurring a debate on the need for judicial accountability and a diamond-hard constitutional code that covers every dimension of judicial performance. The CJI has written to Prime Minister Manmohan Singh seeking his "intervention to initiate the impeachment process" in the Parliament. Sen had allegedly appropriated Rs 32 lakh as a court-appointed receiver in 1993 in a lawsuit between the Steel Authority of India and Shipping Corporation of India over the supply of fire bricks. The impeachment comes at a time when scandals involving the judiciary are leak-



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IN THE DOCK: Justice Sen

## Tedious Task of Impeachment

**W**ith the UPA planning to go ahead with the impeachment process, a legal fortress that secures judiciary from the volatile political climate may come handy for the beleaguered Justice Soumitra Sen. The motion for his removal will be introduced if it has the support of 100 MPs in the Lok Sabha and 50 in the Rajya Sabha, which UPA can easily rope in. The charges against him should be probed and confirmed

by an independent tribunal comprising the presiding officers of both Houses. The motion should be supported by a majority in each House and two-thirds of the total MPs present and voting in both Houses. "An impeachment motion will be submitted in Parliament when it is scheduled to meet on October 17," says Law Minister H.R. Bhargava.

But the removal of a judge is easier said than done. The country's sole im-